CHAPTER 66 Lokpal and Lokayuktas

Global Scenario

Modern democratic states are characterised by a welfare orientation. Hence, the government has come to play an important role in the socio-economic development of a nation. This has resulted in the expansion of bureaucracy and the multiplication of administrative process, which in turn increased the administrative power and discretion enjoyed by the civil servants at different levels of the government. The abuse of this power and discretion by civil servants opens up scope for harassment, malpractices, maladministration and corruption. Such a situation gives rise to citizens' grievances against administration[1].

The success of democracy and the realisation of socio-economic development depends on the extent to which the citizens' grievances are redressed. Therefore, the following institutional devices have been created in different parts of the world to deal with the redressal of these grievances:

1. The Ombudsman System
2. The Administrative Courts System
3. The Procurator System

The earliest democratic institution created in the world for the redressal of citizens' grievance is the Scandinavian institution of Ombudsman. Donald C. Rowat, an international expert on the institution of Ombudsman, calls it a "uniquely appropriate institution for dealing with the average citizens' complaints about unfair administrative actions."

The institution of Ombudsman was first created in Sweden in 1809. 'Ombud' is a Swedish term and refers to a person who acts as the representative or spokesman of another person. According to Donald C. Rowat, Ombudsman refers to "an officer appointed by the legislature to handle complaints against administrative and judicial action."

The Swedish Ombudsman deals with the citizens' grievances in the following matters:

1. Abuse of administrative discretion, that is, misuse of official power and authority
2. Maladministration, that is, inefficiency in achieving the targets
3. Administrative corruption, that is, demanding bribery for doing things
4. Nepotism, that is, supporting one's own kith and kin in matters like providing employment
5. Discourtesy, that is, misbehaviour of various kinds, for instance, use of abusive language.

The Ombudsman is a constitutional authority and enjoys the powers to supervise the compliance of laws and regulations by the public officials, and see that they discharge their duties properly. In other words, The authority keeps a watch over all public officials—civil, judicial and military—so that they function impartially, objectively and legally, that is, in accordance with the law. However, the authority has no power to reverse or quash a decision and has no direct control over administration or the courts.